

Secret threats: On state surveillance and democracy

The state must not **stifle** democratic **dissent** in the name of national security

State surveillance must be subject to **systemic** checks and supervision and not **mirror** the **nefarious** activities of the dark **underworld**. As a Supreme Court of India Bench **pointed out**, the question is not whether the state can use **spyware**, but who could be its **legitimate** targets. The **Bench**, during a **hearing** on the **alleged** surveillance of politicians, judges, religious leaders, civil servants and journalists by some state entity, **was evidently** seeking to **curtail arbitrary** use of the powers and tools of surveillance. The government has neither confirmed nor denied that it uses Pegasus, an Israel-made military grade spyware that is sold only to state agencies, which was used to target a wide range of people. The matter reached the Court after global **revelations** about the existence and the use of this tool, and it appointed a technical committee whose investigation was **constrained** by a lack of cooperation from alleged targets and the government. Several high-profile **users** of the iPhone, the primary target of Pegasus, **continued** to get security alerts from the manufacturer that they were targets of suspected state surveillance, even as the matter was before the judiciary. **States** the world over **have** used extra-legal measures to **snoop** on targets that tried to **firewall** their communication using rapidly evolving technologies. Terrorists and other non-state **actors**, and criminals are using **encryption** and other advanced technologies to **evade** detection as they **plot** to harm the wider society. Without adequate legal and technological **wherewithal**, the state would be ineffective in **dealing with** emerging national security threats. In this context, and particularly **against the backdrop** of the terrorist attack in Pahalgam in Jammu and Kashmir, the Court has framed a relevant question.

The **tendency** of the government to **arbitrarily invoke** national security in defence of a **brazen denial** of due process and **transparency** in law **enforcement** **has** been **called out** by the Court in the past. There is also the disturbing trend of government actors routinely **labelling** political opponents as anti-nationals. If the state is to claim more surveillance powers, corresponding and **robust guardrails** must also be **engineered**. National security cannot be an excuse for executive **arbitrariness** and a violation of individual rights and dignity. **Protocols** that ensure that clearly defined standards and steps are followed in surveillance **must** be established. Once the security concerns are **overcome**, and within appropriate timelines, these processes should be subject to **oversight** by other branches of government and the public **at large**. At any rate, no state agency can have the authority to **interfere** in the democratic politics of the country, or **stifle dissenting** voices and activism. While trying to tackle an uncertain security environment, the **compass** of India's constitutional democracy **must** stay **firm**.

- Red/blue coloring of words in the sentence indicates subject verb relationship; where 'red' denotes 'subject' and 'blue' denotes 'verb'.

[Practice Exercise]

Vocabulary

1. **Surveillance** (noun) – monitoring, observation, scrutiny, watch, inspection
निगरानी
2. **Stifle** (verb) – suppress, restrain, smother, curb, quell दबाना
3. **Dissent** (noun) – disagreement, opposition, protest, objection, disapproval
असहमति
4. **Systemic** (adjective) – structural, institutional, organized, methodical, comprehensive – प्रणालीगत
5. **Mirror** (verb) – reflect, imitate, resemble, copy, replicate दर्शाना
6. **Nefarious** (adjective) – wicked, evil, criminal, immoral, sinister दुष्ट
7. **Underworld** (noun) – criminal world, mafia, crime syndicate, gangland, illicit network अपराध जगत
8. **Point out** (phrasal verb) – indicate, mention, highlight, state, draw attention to इंगित करना
9. **Spyware** (noun) – surveillance software, malware, tracking tool, data thief, snooping tool जासूसी सॉफ्टवेयर
10. **Legitimate** (adjective) – lawful, legal, valid, authorized, justified वैध / उचित
11. **Bench** (noun) – panel of judges, judiciary, court, tribunal, legal authority न्यायपीठ
12. **Hearing** (noun) – court session, legal proceeding, trial, session, judicial review
सुनवाई
13. **Alleged** (adjective) – supposed, claimed, suspected, reported, asserted कथित
14. **Evidently** (adverb) – clearly, obviously, apparently, seemingly, unmistakably स्पष्ट रूप से
15. **Curtail** (verb) – reduce, limit, restrict, cut short, curb सीमित करना / घटाना
16. **Arbitrary** (adjective) – random, capricious, unreasonable, biased, autocratic मनमाना
17. **Revelation** (noun) – disclosure, discovery, exposure, announcement, unveiling
खुलासा
18. **Constrain** (verb) – restrict, limit, hinder, restrain, inhibit रोकना
19. **Snoop** (verb) – spy, eavesdrop, prying, peep, intrude चुपके से निगरानी करना
20. **Firewall** (verb) – protect, shield, block access, safeguard, secure सुरक्षा करना
21. **Actor** (noun) – participant, agent, player, stakeholder, operative सक्रिय भूमिका निभाने वाला व्यक्ति

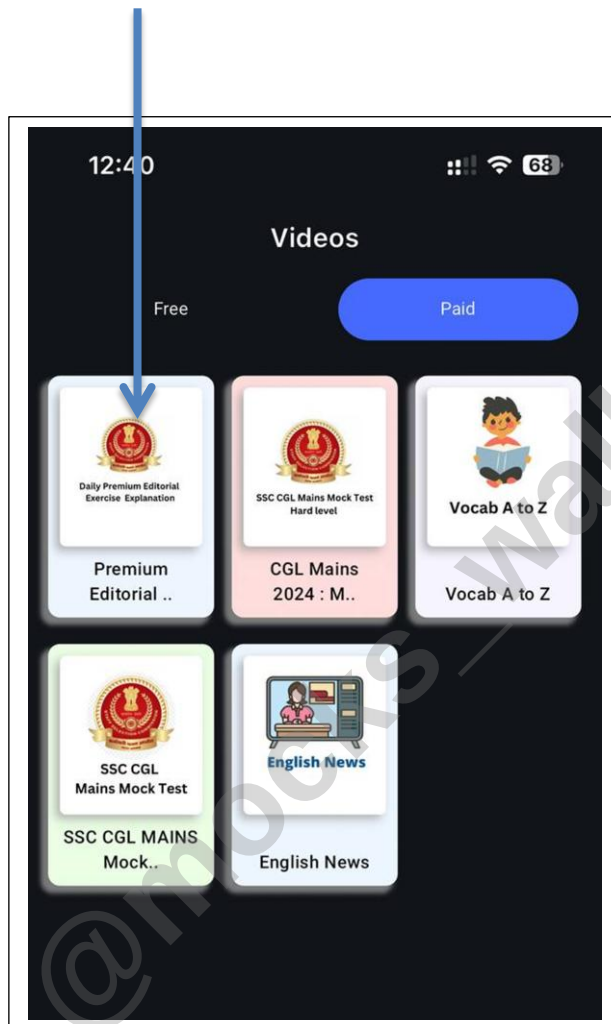
22. **Encryption** (noun) – data encoding, coding, ciphering, scrambling, information protection गुप्त कोड
23. **Evade** (verb) – escape, avoid, dodge, elude, bypass बच निकलना
24. **Plot** (verb) – plan secretly, scheme, conspire, devise, organize षड्यंत्र रचना
25. **Wherewithal** (noun) – resources, means, capacity, capability, tools आवश्यक साधन
26. **Deal with** (phrasal verb) – handle, manage, tackle, address, confront निपटना
27. **Against the backdrop** (phrase) – in the context of, amid, considering, under the influence, in light of की पृष्ठभूमि में
28. **Arbitrarily** (adverb) – randomly, capriciously, unjustly, despotically, irrationally मनमाने ढंग से
29. **Invoke** (verb) – cite, refer to, use, appeal to, call upon उपयोग करना
30. **Brazen** (adjective) – shameless, bold, unashamed, blatant, defiant ढीठ
31. **Denial** (noun) – refusal, rejection, dismissal, contradiction, negation इनकार
32. **Transparency** (noun) – openness, clarity, accountability, honesty, visibility पारदर्शिता
33. **Enforcement** (noun) – implementation, execution, imposition, application, compulsion – प्रवर्तन
34. **Call out** (phrasal verb) – criticize, denounce, challenge, expose, name सार्वजनिक आलोचना करना
35. **Label** (verb) – tag, classify, brand, designate, mark नाम देना
36. **Robust** (adjective) – strong, resilient, sturdy, sound, solid मजबूत
37. **Guardrail** (noun) – safeguard, restraint, limit, barrier, control measure सुरक्षा उपाय
38. **Engineer** (verb) – design, devise, orchestrate, construct, build तैयार करना
39. **Arbitrariness** (noun) – randomness, unpredictability, capriciousness, despotism, inconsistency मनमानी
40. **Overcome** (verb) – defeat, conquer, surmount, resolve, tackle काबू पाना
41. **Oversight** (noun) – supervision, monitoring, control, review, watch निगरानी
42. **At large** (phrase) – in general, widespread, overall, broadly, unrestricted व्यापक रूप से
43. **Interfere** (verb) – intrude, meddle, intervene, tamper, obstruct हस्तक्षेप करना
44. **Dissenting** (adjective) – opposing, disagreeing, contrary, nonconforming, critical असहमति रखने वाला

45. **Compass** (noun) – direction, guidance,
framework, scope, range दिशा

46. **Firm** (adjective) – stable, strong, resolute,
unwavering, steady मजबूत

@mocks_wallah

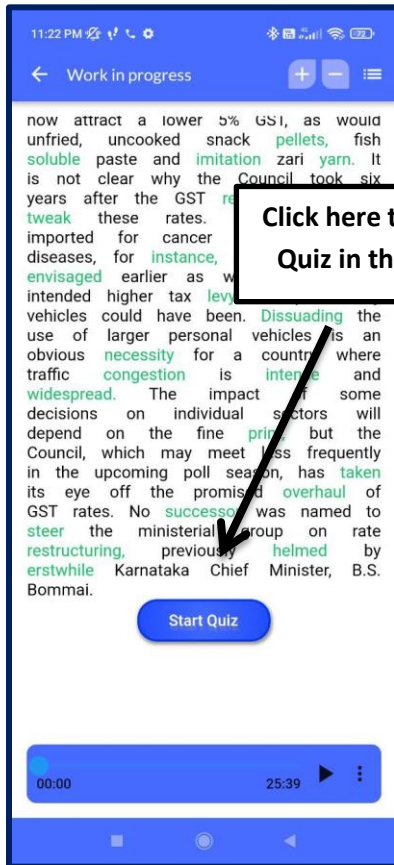
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Summary of the Editorial

1. **State surveillance must be regulated** through systemic checks and not resemble unlawful or covert operations.
2. The **Supreme Court** has questioned not just the use of spyware like **Pegasus**, but **who can be lawfully targeted**.
3. The hearing focused on alleged surveillance of **politicians, judges, religious leaders, civil servants, and journalists**.
4. The government has **neither confirmed nor denied** using Pegasus, which is sold exclusively to state actors.
5. A **technical committee appointed by the Court** faced challenges due to non-cooperation from both the government and alleged targets.
6. Even during the legal proceedings, **iPhone users received alerts** of ongoing surveillance attempts, likely by state entities.
7. Globally, governments have resorted to **extra-legal surveillance tactics** to monitor individuals using encryption technologies.
8. While **terrorists and criminals** use advanced tools to evade detection, states need **legal and technological capabilities** to counter them effectively.
9. The recent **terrorist attack in Pahalgam, J&K**, highlights the need for strong security, but not at the cost of civil liberties.
10. The Court has criticized the **misuse of "national security"** to justify denial of due process and transparency.
11. Labelling **political dissenters as anti-national** has become a worrying trend by government actors.
12. If the state demands **greater surveillance powers**, it must also build **strong accountability mechanisms**.
13. **National security should not justify executive overreach** or infringement on personal rights and dignity.
14. **Clear surveillance protocols** must be legally codified, with **oversight by other branches of government**.
15. Ultimately, no agency should be allowed to **interfere in democratic politics** or suppress dissent; the **principles of constitutional democracy must prevail**.

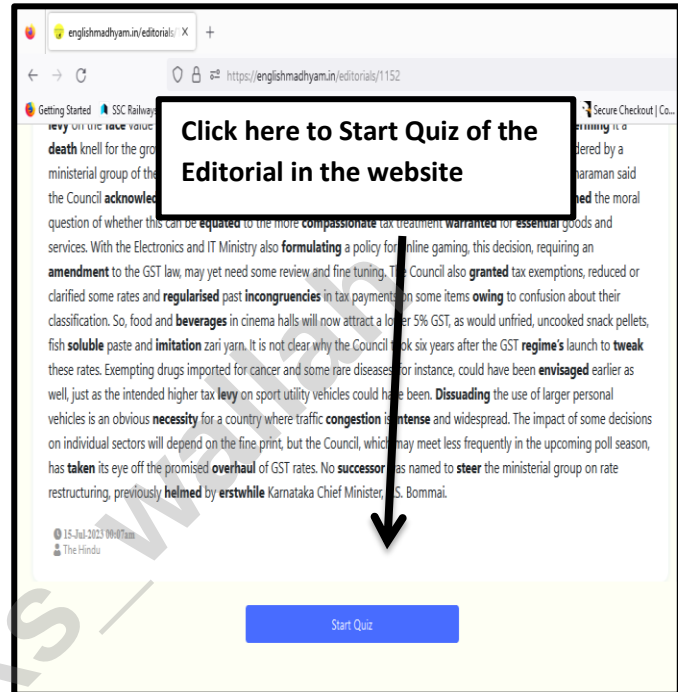
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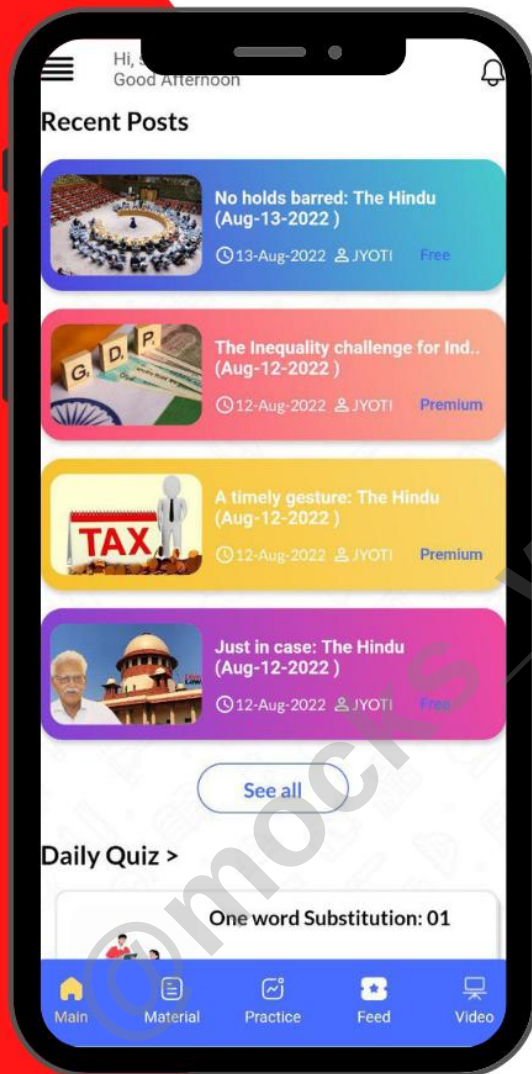
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